cers would have gone into Case's home just so he could instigate a gunfight. The circumstances making their entry reasonable, as just stated, were those suggesting that Case may already have shot himself or would do so absent intervention. The statements Case made to J. H. plus the visual evidence corroborating them indicated that Case wanted to end his life. The decision of the officers to enter his home to prevent that result—even at some significant risk to themselves—was (at the least) reasonable. The Fourth Amendment did not require them, as Case now argues, to leave him to his fate.

* * *

We repeat today what we have held before: An officer may enter a home without a warrant if he has "an objectively reasonable basis for believing that an occupant is seriously injured or imminently threatened with such injury." *Brigham City*, 547 U. S., at 400. The officers' entry satisfied that test. Accordingly, we affirm the judgment (even though not all the reasoning) of the Montana Supreme Court.

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It is so ordered.

JUSTICE SOTOMAYOR, concurring.

I join the Court's opinion, which holds that police officers may enter a home without a warrant if they have an "'objectively reasonable basis for believing'" that an occupant is seriously injured or imminently threatened with such harm. *Ante*, at 114, 116, and this page. Although the Montana Supreme Court's opinion appeared, erroneously, to apply a lower standard akin to reasonable suspicion, I agree that the officers here had an "'objectively reasonable basis for believing'" that Case needed emergency assistance because he may have already shot himself or was imminently going to do so. *Ante*, at 116–118 and this page.

I write separately to underscore the unique considerations that law enforcement and courts should bear in mind when

assessing whether there is an "objectively reasonable basis to believe" that a person experiencing a mental-health crisis needs law enforcement to "render emergency assistance." *Brigham City* v. *Stuart*, 547 U. S. 398, 403 (2006). As *Brigham City* explained, the "'justification for what would be otherwise'" an illegal warrantless entry of a home in this context is "'[t]he need to protect or preserve life or avoid serious injury.'" *Ibid.* (quoting *Mincey* v. *Arizona*, 437 U. S. 385, 392 (1978)). The officers in *Brigham City*, for instance, needed to enter the house to break up an ongoing fight to protect a person whom they saw through a window being struck in the face and to prevent further violence. 547 U. S., at 406. When an officer is called to respond to a person at risk of suicide, however, entering the house may not always be the objectively reasonable course of action to "'preserve life or avoid serious injury.'" *Id.*, at 403 (quoting *Mincey*, 437 U. S., at 392).

In these kinds of circumstances, the presence of law enforcement at times can escalate the situation rather that ameliorate it, putting both the occupant and the officers in danger. See, *e. g.*, *Chamberlain* v. *White Plains*, 960 F. 3d 100, 101–104, 108 (CA2 2020) (officers repeatedly attempted entry of the home of a person with a known "history of mental illness," eventually shooting and killing the occupant after he repeatedly said he was "'okay'" and officers saw he did not need medical attention); *Bailey* v. *Kennedy*, 349 F. 3d 731, 734–736, 744 (CA4 2003) (officers attempted to enter house based on a neighbor's report of suicide, eventually kicking and striking occupant to arrest him, despite occupant telling the officers that he was not suicidal and that they should leave). The risk of escalation is also heightened by the prevalence of firearms in nearly half of American households.[1] Police may employ more forceful tactics when they

[1] In 2025, 42% of Americans reported living in a gun-owning household. Gallup, Guns, https://news.gallup.com/poll/1645/guns.aspx (archived at https://perma.cc/G76N-5T7Z.

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know a firearm is in the house, and an occupant who is experiencing an acute mental-health crisis may react more unpredictably in response. See, *e. g.*, *Corrigan* v. *District of Columbia*, 841 F. 3d 1022, 1025–1028 (CADC 2016) (despite occupant voluntarily meeting the police outside and disclaiming any intention to harm himself, the officers triggered occupant's posttraumatic stress disorder after kicking his door and searching his house, based on report that he was suicidal and owned firearms); *Frazier* v. *Miller*, 404 Mont. 1, 484 P. 3d 912, 916 (2021) (occupant initially told police he was "'fine'" and to "go away" but drew pistol to his own head when the officer continued to attempt entry, leading the officer to draw his gun in response and eventually shoot the occupant).

Studies show that individuals with serious mental-health conditions are disproportionately likely to be injured and seven times more likely to be killed during police interactions compared to the general population.[2] One report showed that over a 2-year period, "calls for help resulted in law enforcement officers shooting and killing the very people they were called on to assist" in 178 cases.[3] Another study found that police shooting incidents involving behavioral health concerns (suicidal behavior, substance use, or serious mental illness) were 2.1 times more likely to result in fatal injury than other police shooting incidents.[4] Further, individuals with a mental illness were "2.8 times more likely" to

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[2] See H. Jun, J. DeVylder, & L. Fedina, Police Violence Among Adults Diagnosed With Mental Disorders, 45 Health & Soc. Work 81 (May 2020); A. Saleh, P. Applebaum, X. Liu, T. Stroup, & M. Wall, Deaths of People With Mental Illness During Interactions With Law Enforcement, 58 Int'l J. L. & Psychiatry 110, 114 (May-June 2018) (Saleh).

[3] J. Gerberg & A. Li, When a Call to the Police for Help Turns Deadly, Washington Post, June 22, 2022, https://www.washingtonpost.com/investigations/interactive/2022/police-shootings-mental-health-calls/.

[4] J. Ward et al., National Burden of Injury and Deaths From Shootings by Police in the United States, 2015–2020, 4 Am. J. Pub. Health 387, 391–392 (2024).

"be killed in their own homes" compared to those without a mental illness.[5]

Given these risks, in some circumstances it may be more reasonable for officers to try different means of de-escalation before entering the home of a person experiencing a mental-health crisis. Officers could, for example, attempt to speak with the occupant from a distance or over the phone; contact family, friends, or neighbors to help intervene; call in specialized police units, such as negotiators or officers trained in crisis intervention;[6] or otherwise work with mental-health professionals to approach the occupant.[7] Officers called to respond to these kinds of situations should carefully investigate and assess the nature of the potential crisis and determine whether there is an objectively reasonable basis to believe that the occupant needs emergency aid inside before entering without a warrant. Once the decision is made to enter, moreover, the "manner" of the officers' entry and their subsequent conduct inside must also be "reasonable." *Brigham City*, 547 U. S., at 406.

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This case highlights the very complexities that will often attend emergency-aid interventions involving reported mental-health crises. Multiple facts suggested that Case did not need emergency aid but was instead waiting inside for the officers in order to provoke a confrontation that would result in "suicide-by-cop."

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[5] Saleh 114.

[6] See *id.*, at 114–115; Brief for American Psychiatric Association et al. as *Amici Curiae* 18–25 (describing programs that involve sending teams of specially trained police to respond to calls about mental-health crises).

[7] Many jurisdictions around the country have introduced programs in which police officers and mental-health professionals jointly respond to calls about mental-health crises. See Policy Research, Inc. & National League of Cities, A. Krider, R. Huerter, K. Gaherty, & A. Moore, Responding to Individuals in Behavioral Health Crisis Via Co-responder Models (Jan. 2020), https://www.theiacp.org/sites/default/files/SJCResponding%20to%20Individuals.pdf (archived at https://perma.cc/LMZ2-FAC9) (describing "co-responder" programs).

Case had told his girlfriend, J. H., on the phone that he would "shoot them all" if she called the police to his house. App. 69. Once J. H. arrived at the house, she told the officers that Case threatened to "shoot it out" with the police. *Id.*, at 70–74. The officers also knew that in a prior incident in which police were called to respond to a suicide attempt by Case, Case had confronted the police in a way that suggested he was attempting suicide-by-cop. Then, while surveying the house, the officers discussed how Case had " 'tried suicide by cop before' " and that it was likely Case was " 'going to pull a gun on us' " once they " 'go in the house.' " 417 Mont. 354, 373, 553 P. 3d 985, 998 (2024) (McKinnon, J., dissenting).

These facts, taken together, suggested that Case was neither already injured nor about to injure himself, but rather that the primary danger he faced would arise only if the officers entered his house. In other words, these facts tended to undermine the officers' basis to believe that he needed emergency assistance inside.

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The officers' warrantless entry ultimately did not violate the Fourth Amendment, however, because there were sufficient facts on the other side of the ledger supporting an objectively reasonable basis to believe that Case had shot himself. Critically, Case had told J. H. he had a "loaded gun" and J. H. heard a "clicking" sound like the "cock[ing]" of "a gun," a "pop," and then "just dead air" despite J. H. yelling Case's name multiple times over the phone. App. 68–69; 417 Mont., at 357, 553 P. 3d, at 988. Case also told J. H. that he was "going to get a note" and "kill himself." App. 67–68. When the officers arrived, they saw an empty handgun holster and notepad with writing inside Case's house, and Case did not respond when they shouted his name into an open window. Considered together, those facts gave rise to an objectively reasonable basis for the officers to believe that Case was already injured and in need of emergency medical assistance, and was not necessarily waiting inside for the officers seeking to provoke an escalation leading to suicide-

by-cop. As a result, the officers did not violate the Fourth Amendment when they entered Case's home.[8]

That conclusion, on the facts of this case, does not mean it will always be objectively reasonable for officers responding to a mental-health crisis to make a warrantless entry. A different mix of information might have led to the conclusion that the officers' entry itself would put the occupant (and officers) at a greater risk of escalation and serious injury. Because the "objectively reasonable basis" test, as reaffirmed by the Court today, demands careful attention to the case-specific risks that attend mental-health crises, and requires officers to act reasonably in response, I join the Court's opinion in full.

JUSTICE GORSUCH, concurring.

Today's case, like another before it, holds that police officers generally do not violate a person's Fourth Amendment rights when they enter his house without a warrant, but with an "'objectively reasonable basis'" for believing someone inside is in physical danger and in need of immediate aid. *Ante*, at 116 (quoting *Brigham City* v. *Stuart*, 547 U. S. 398, 400 (2006)). Importantly, the Court observes, this exception to the warrant requirement permits entry only to the extent reasonably necessary to address the apparent emergency and does not authorize officers to search a home more broadly. See *ante*, at 117. With all that, I agree.

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But to me, a question lingers: Why? Does the Fourth Amendment tolerate this limited emergency aid exception to the warrant requirement just because five or more Justices of this Court happen to believe that such entries are "reasonable"? Or is this exception more directly "tied to the law"? *Carpenter* v. *United States*, 585 U. S. 296, 397

[8] Case has not challenged the reasonableness of the officers' manner of entry or their conduct inside his house after entry. As a result, neither the decision below nor this Court had occasion to consider the reasonableness of that conduct.